GUTA RA MWARI CONGREGATION
(a duly constituted religious organization with its headquarters at No. 56008 Old Lobengula, Bulawayo, represented herein by Evangelist Stephen Sibanda duly authorized officer)
versus
GUTA RA MWARI RELIGION
and
ATHANAS ZIVAVE
and
JOSEPH TAYALI
and
JOEL TAWODZERA
and
FABION JACHA
and
GIFT MAKAWA
and
GUTA RA MWARI 7 AM FORMATION

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 19 and 26 February 2026

Opposed Application

M.E.P Moyo with *S Mutambi,* for the Applicant
T Mpofu, for the 1st Respondent
No appearance for the 2nd-7th Respondents.

DEME J: Litigants who approach the courts are required to circumspectly express their wishes and allegations through pleadings. The primary purpose of the pleadings is for the court and the parties to be able to define issues for any matter before the court. A party who is called upon to respond to a material averment cannot afford to close his or her eyes to such a call. It is an established principle in our jurisdiction that a party who is called upon to respond to a material averment and fails to specifically deny such averment can force the court to draw adverse inferences against him or her. The Applicant, in the present application, neglected to specifically deny fraud allegations levelled against it by the first Respondent; choosing instead to

make bare denials against fraud accusations. For this reason, the Applicant helped the first Respondent in establishing fraud by its failure to specifically deny such a fraud claim. Our courts have consistently held that bare denials are insufficient for purposes of pleadings.

The Applicant is approaching this court in terms of Rule 32. More particularly, the Applicant is seeking to be joined to the matter in case number HCH4154/25. It is praying for the following relief:

1. "The Applicant, THE GUTA RA MWARI CONGREGATION, be and is hereby joined as an interested party in these proceedings (Case No. HCH4154/25).

2. The Applicant shall be entitled to file any pleadings or affidavits necessary to assist the court in determining the issues of identity, representation, and authority in the main proceedings within 15 days of the order.

3. The applicant's jointer shall be for the purpose of enabling the court to determine:

    a. Whether the persons who instituted the summons in the name of Guta Ra Mwari religion had lawful authority to do so.

    b. Whether the entity cited as Guta Ra Mwari Religion/ Plaintiff in HCH 4154/25 is the legitimate church organisation or a separate unauthorised faction; and

    c. The effect of the purported proceedings on the Applicant and its members.

4. Such further and/or alternative relief as this Honourable Court may deem just.

5. The costs are granted on a legal practitioner and client scale; as against any party who opposes the application otherwise, costs shall be in the main cause."

The Applicant averred that if it is joined to the matter in case number HCH4154/25, it will be able to clarify certain issues in that matter. According to the Applicant, it is in the interest of justice that it be joined to the matter in case number HCH4154/25.

In case number HCH4154/25, the first Respondent is suing the second to the seventh Respondents seeking a declarator that they be declared to have seceded from being members of the first Respondent. In the same case, the first Respondent also seeks the consequential relief that the second to the seventh Respondents be evicted from the properties of the first Respondent.

It is the view of the Applicant that the first Respondent was not authorized by the relevant Applicant's leadership to institute the matter in case number HCH4154/25. The Applicant further averred that the first Respondent is a splinter group having separated from the Applicant. The Applicant additionally alleged that an order of eviction sought in case number HCH4154/25 will see *bona fide* members of the Applicant being evicted from properties owned by the Applicant. On this basis, the Applicant affirmed that it has a direct interest in the main matter as it is the owner of the properties which are at the centre of the dispute.

The application was opposed by the first Respondent, which raised two points *in limine*. Firstly, the first Respondent averred that the Applicant failed to plead its legal status. In its second point *in limine*, the 1st Respondent argued that the present application is characterized by acts of fraud in a variety of ways.

I will now address the points *in limine,* not necessarily following their order. The first Respondent maintained that the present application is pregnant with fraud. Reference is made to para(s) 10-14 of the first Respondent's opposing affidavit. According to the first Respondent, the present application is an attempt to join the non-existent entity to the matter in case number HCH4154/25. Reference is made to para 11 of the first Respondent's opposing affidavit. The first Respondent, in para 11 of the opposing affidavit, further asserted that the joinder seeks to confuse the proper investigations of the issues in the main matter. In para 12 of the first Respondent's opposing affidavit, it was alleged that the deponent to the founding affidavit, Mr. Stephen Sibanda, is a member of the seventh Respondent. Mr. Sibanda, according to the first Respondent, is not a member of the Applicant, which is a non-existent entity. The second to the sixth Respondents are also members of the seventh Respondent, according to the first Respondent's averment outlined in para 14 of the first Respondent's opposing affidavit.

The first Respondent claimed that the second to the sixth Respondents are the colleagues of Mr. Sibanda, who also ceased to be members of the first Respondent. According to the first Respondent, the Applicant is a fictitious entity created by the second to the seventh Respondents and Mr. Sibanda.

In its answering affidavit, the Applicant did not choose to respond directly to the issues raised. The Applicant chose to make a broader response. In para(s) 2-5 of the answering affidavit, the Applicant averred that:

> "2. I have read the 1st Respondent's Notice of Opposition and Opposing Affidavit filed under this matter. The contents thereof are denied to the extent that they are inconsistent with what is set out herein.
>
> 3. Save where expressly admitted herein, I deny each and every allegation, contention, inference, and conclusion made by the 1st Respondent in their opposing affidavit.
>
> 4. The 1st Respondent makes broad, unsubstantiated allegations relating to the governance, authority, constitution, resolutions and internal structures of Guta Ra Mwari Congregation. These allegations are bald, unproven and incapable of being accepted without evidence.
>
> 5. I therefore put the 1st Respondent to the strictest proof of every averment they have made."

Adv. *Mpofu* argued that such denial must be considered as appropriate in the circumstances. He argued that the Applicant denied all issues raised in the opposing affidavit. Adv Mpofu submitted that the denials made by the Applicant can be characterized as bare denials. He contended that bare denials are insufficient for purposes of pleading.

Adv. *Mpofu* argued that fraud must be pleaded and established in the pleadings, while Adv. *Mpofu* contended that the Applicant's failure to replicate to fraud allegations on its own has helped to establish such allegations. Submitting on the effect of one's failure to deny in pleadings, first Respondent referred the court to the cases of *Minister of Lands and Agriculture* v *Commercial Farmers Union*[1], *Nhidza* v *Unifreight*[2], *Shumba and Anor* v *ZEC and Anor* [3] and *Church of the Province of Central Africa* v *Diocesan Trustees of the Dioceses of Harare*[4]. According to Adv. *Mpofu*, fraud unravels everything that has been established. Reference was made to the case of *Lazarus Estates Ltd* v *Beasley*[5].

---

[1] SC111/01.

[2] SC27/99.

[3] SC11/08.

[4] SC48/12.

[5] 1956 (1) Q.B. 702.

In my view, the issue of fraud is a serious allegation or material averment that requires a response where it has been raised. It was alleged that the Applicant is a non-existent entity. It was further alleged that the Applicant is a fictitious entity meant to confuse issues in the main matter, case number HCH4154/25. Making bare denials against such allegations is not appropriate in the circumstances. Responding to paragraph by paragraph may enable the court to have a clear picture of the nature of the denials.

It is significant to mention at this stage that pleadings are vital for any matter. The pleadings help to define the issues between the parties. Bare denials will disable the court from making a proper investigation of the real issues between the parties. In the case of *Da Mata* v *Otto N.O.*[6] the court held that:

> *"……*it is important to bear in mind that, if a respondent intends disputing a material fact deposed to on oath by the applicant in his founding affidavit or deposed to in any other affidavit filed by him, it is not sufficient for the respondent to resort to bare denials of the applicant's material averments, as if he were filing a plea to a Plaintiff's particulars of claim in a trial action."

In motion proceedings, the affidavits have a dual role. They act as pleadings and evidence. The court is expected to make a decision based on affidavit evidence. In my view, bare denials will not assist the deponent to establish his or her case. Reference is also made to the case of *Robson Makoni* v *CBZ Limited*[7], where the Supreme Court held that*:*

> "In as much as there was no obligation to prove the defence, there certainly was an obligation to establish a *prima facie* defence. The bare denial made by the appellant that he did not owe the respondent the sum claimed, but a lesser figure, was not sufficient."

In the absence of specific denials, the court is left with no issues to resolve. Specific denials will help the court to find the real dispute between the parties. Where bare denials are made, the court will assume that there are no disputes requiring resolution. In the case of

[6] 1972 (3) SA 858 (A)

[7] SC47/20.

Muzanenhamo v *Officer in Charge CID Law and Order and Others*[8], the Constitutional Court propounded the following remarks:

> "The respondent's defence must be set out in clear and cogent detail. A bare denial of the applicant's material averments does not suffice."

Without a specific denial of issues raised, one would be forced to reach a negative conclusion against the deponent of the affidavit. In my view, the route of bare denials chosen by the Applicant in response to the issue of fraud will force the court to reach a conclusion that they are admitting facts alleged by the first Respondent in its opposing affidavit. For this reason, I am of the view that the Applicant is admitting that it is a non-existent entity. I am also driven to conclude that the Applicant is aware that it is a fictitious entity meant to deceive the court, as alleged. The issues denied in para 4 of the answering affidavit have nothing to do with whether the Applicant is an existing entity. The deponent to the answering affidavit denies the allegations of the Applicant's governance, authority, constitution, resolutions, and internal structures.

The Applicant ought to have answered the accusation that it wants to introduce new issues, which may confuse the court in case number HCH4154/25. I am forced to agree with the first Respondent, especially if one peruses the relief sought. In terms of the draft order, the Applicant simply wants to be joined to case number HCH4154/25. The Applicant did not indicate whether they want to join the Plaintiff's or Defendants' side. This is not an error in my view. Further in para 3 of the draft order, the Applicant seems to be dictating issues for determination in case number HCH4154/25. In para 2 of the draft order, the Applicant seeks leave to file pleadings and affidavits in case number HCH4154/25. In action procedure, there are specific pleadings which are filed within exact time lines. For unknown reasons, the Applicant wishes to file all their unidentified pleadings and affidavits within fifteen days. In my view, the draft order of the Applicant is a clear demonstration of a litigant that does not know what exactly it wants. An allegation that the Applicant wants to confuse issues in case number HCH4154/25 becomes more probable if one peruses the draft order filed in the present application.

[8] CCZ3/13.

Rule 36(14) puts it beyond doubt. This subrule prohibits evasive pleading to a point of substance. It provides that:

> "When a party in a pleading denies an allegation of fact in the previous pleading of the opposite party, he or she shall not do so evasively, but shall answer the point of substance."

In light of this, I am of the view that it becomes more compelling that the Applicant ought to have answered the fraud allegations by specifically denying such accusations. Bare denials are not sufficient under such a state of affairs. By failing to respond to such claims, adverse inferences must be drawn against the Applicant. In the circumstances, the present application is an abuse of court process in my view. The application must, as a result, be dismissed. Having reached this conclusion based on fraud allegations, I see no point in addressing the remaining point *in limine.* Doing so can only be a futile exercise.

With respect to costs, I am of the view that the deponent to the founding affidavit must bear the costs of suit on an ordinary scale. Without evidence that the Applicant is an entity that is in existence, it is not appropriate to order costs against such entity. It is resultantly ordered as follows:

A. The application be and is hereby dismissed.
B. Mr. Stephen Sibanda, the deponent to the founding affidavit, shall bear costs of suit on an ordinary scale.

DEME J: ……

Cheda and Cheda Associates, applicant's legal practitioners.
Gill, Godlonton and Gerrans, first respondent's egal practitioners.